

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Vermont

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:34:15 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency's policies for seeking employment as an eligible activity at redetermination do not provide a minimum of three months of job search, as required by 98.21(a)(2)(iii). (Plan Question 2.5.3a ii)

Overall Target Completion Date: 03/15/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Seeking Employment policy will be fully updated to allow for full compliance of this provision. The update will allow for a minimum of three months of job search, including a full three months of seeking employment at redetermination when the full three months of seeking employment has not previously been used.	03/01/2025
2	Updated policy will be posted on CDD website	03/01/2025
3	Policy reviewed with Eligibility Specialists	03/15/2025
4	Rule will be fully implemented and disseminated to staff, providers, and available to the public.	03/15/2025

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
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1	Work with key legislative members to introduce and support legislative changes	06/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	08/01/2026
3	IT System Changes	08/01/2026

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not pay based on enrollment or alternatively does not provide justification that this is impracticable or is not a generally-accepted practice, as required by 98.45(m)(2). (Plan Question 4.4.1b). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not pay for reasonable mandatory registration fees that the provider charges to private-paying parents, as required by 98.45(m)(4). (Plan Question 4.4.2b)
- The Lead Agency does not include the dispute-resolution process in a written payment agreement or authorization for services, as required by 98.45(n)(1). (Plan Question 4.4.2c)

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Work with key legislative members to introduce and support legislative changes	06/01/2025
2	Research to gather information and guidance from other states and OCC	06/01/2025
3	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	08/01/2026

4	IT system changes	08/01/2026
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EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Work with key legislative members to introduce and support legislative changes	06/01/2025
2	Research on supply and demand; gather information and guidance from other states and OCC	06/01/2025
3	Rule changes through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) and update Policy changes	03/31/2026
4	Award initial contracts for slots	08/01/2026
5	IT system changes	08/01/2026

PROGRAM INTEGRITY:EFFECTIVE INTERNAL CONTROLS

Reason(s) for non-compliance:

- The Lead Agency does not describe processes to train providers about program requirements and integrity, as required by 98.68(a)(3). (Plan Question 10.1.5bi)

Overall Target Completion Date: 01/15/2025

Action Step Number	Action Step Description	Target Completion Date
1	Training on program requirements and integrity will be available for providers on the Child Development Division website	01/15/2025
2	Providers notified of availability of training on CDD's website	01/15/2025

HEALTH AND SAFETY:ADMINISTRATION OF MEDICATION

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed centers or licensed family child care homes to complete pre-service or orientation training within three months on administration of medication, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to the administration of medication, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Draft revisions of licensing rules for all types of providers to include requirement that all staff to complete pre-service or orientation training within three months on the administration of medication.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists.	03/01/2026
4	Annual unannounced inspections will review for this topic by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:BUILDING AND PHYSICAL PREMISES SAFETY

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on building and physical premises safety, including identification of and protection from hazards, bodies of water and vehicular traffic for licensed centers and licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1e)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Draft revisions of licensing rules for all types of providers to include requirement that all staff in licensed centers or licensed family child care homes to complete pre-service or orientation training within three months on requirements related to building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists.	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:CHILD DEVELOPMENT

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on child development, for licensed centers and licensed family child care homes, as required by 98.44(b)(1)(iii). (Plan Question 5.4.1l)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to child development, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning for licensed centers and licensed family child care providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with standards for emergency preparedness and response planning and with related pre-service or orientation training, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists.	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:HANDLING AND STORAGE OF HAZARDOUS MATERIALS AND DISPOSAL OF BIOCONTAMINANTS

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed centers or licensed family child care homes to complete pre-service or orientation training within three months on handling and storage of hazardous materials and disposal of biocontaminants, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care for compliance with pre-service or orientation training requirements related to handling and storage of hazardous materials and disposal of biocontaminants, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
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1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:IDENTIFICATION AND REPORTING OF CHILD ABUSE

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed centers or licensed family child care homes to complete pre-service or orientation training within three months on the identification and reporting of child abuse, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care for compliance with pre-service or orientation training requirements related to the identification and reporting of child abuse, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026

3	Topic will be added to all preservice and all annual unannounced inspection checklists	03/01/2026
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HEALTH AND SAFETY:ONGOING TRAINING

Reason(s) for non-compliance:

- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care for compliance with ongoing training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Ongoing training requirements for substitutes in all program types was addressed via an administrative memo.	10/01/2024
2	Draft revisions of all rule types will have this requirement added to the licensing rules.	05/01/2025
3	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
4	Topic will be added to all preservice and all annual unannounced inspection checklists.	03/01/2026
5	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists	03/01/2026

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for licensed centers, licensed family child care

providers, and licensed out-of-school programs, as required by 98.33(a)(4). (Plan Question 5.5.4aii). Please note the Lead Agency has an approved waiver for portions of this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	CDD will complete the development of CDDIS which will have the functionality of posting full monitoring and inspection reports. BFIS does not have this functionality.	08/01/2026

HEALTH AND SAFETY:PRECAUTIONS IN TRANSPORTING CHILDREN

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed centers or licensed family child care homes to complete pre-service or orientation training within three months on precautions in transporting children, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care for compliance with pre-service or orientation training requirements related to precautions in transporting children, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026

3	Topic will be added to all preservice and all annual unannounced inspection checklists.	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers and licensed family child care, as required by 98.44(b)(1)(i). (Plan Question 5.4.1a)
- The Lead Agency does not require an annual unannounced inspection for all licensed centers for compliance with standards for immunization and with related pre-service or orientation training. Additionally, the Lead Agency does not require an annual unannounced inspection for licensed family child care homes for compliance with pre-service or orientation training related to prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists.	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:PREVENTION AND RESPONSE TO EMERGENCIES FROM FOOD AND ALLERGIC REACTIONS

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed centers or licensed family child care homes to complete pre-service or orientation training within three months on the prevention and response to emergencies from food and allergic reactions, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care for compliance with pre-service or orientation training requirements related to the prevention and response to emergencies from food and allergic reaction, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:PREVENTION OF SHAKEN BABY SYNDROME, ABUSIVE HEAD TRAUMA, AND CHILD MALTREATMENT

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on prevention of shaken baby syndrome, abusive head trauma, and child maltreatment for licensed centers and licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1f)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with pre-service or orientation training requirements related to the prevention of shaken baby syndrome, abusive head trauma, and child maltreatment, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists.	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

HEALTH AND SAFETY:SUDDEN INFANT DEATH SYNDROME AND SAFE SLEEP

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed centers or licensed family child care homes to complete pre-service or orientation training within three months on sudden infant death syndrome and safe sleep practices, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with pre-service or orientation training requirements related to sudden infant death syndrome and safe sleep practices, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This will be a requirement added to the draft licensing rule revisions for all program types that this topic be added to pre-service or orientation training to be completed within three (3) months.	05/01/2025
2	Rule Change through the Interagency Committee on Administrative Rules (ICAR) and Legislative Committee on Administrative Rules (LCAR) processes.	03/01/2026
3	Topic will be added to all preservice and all annual unannounced inspection checklists.	03/01/2026
4	Annual unannounced inspections will review for this topic as evidenced by updating the inspection checklists.	03/01/2026

COMPREHENSIVE BACKGROUND CHECK:BACKGROUND CHECK PROCESSES

Reason(s) for non-compliance:

- The Lead Agency does not ensure background checks are completed within 45 days of the request, as required by 98.43(e)(1). (Plan Question 5.7.13a)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Receive technical assistance from the National Center on Subsidy Innovation and Accountability to map Vermont's current standard of practice.	11/15/2024
2	CDD will continue to work with our partners at VCIC, NCSIA, and OCC to work towards a plan to come into compliance which includes exploring	12/31/2025

	solutions to ensure background checks are completed within 45 days of the request	
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**COMPREHENSIVE BACKGROUND CHECK:PRE-SERVICE CHECK REQUIREMENTS
(PROVISIONAL HIRE)**

Reason(s) for non-compliance:

- The Lead Agency does not require a qualifying result from an FBI criminal background check or in-state criminal background check with fingerprints before a prospective staff member begins work, as required by 98.43(d)(4). (Plan Questions 5.7.12a and 5.7.12b)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Receive technical assistance from the National Center on Subsidy Innovation and Accountability to map Vermont's current standard of practice.	11/15/2024
2	CDD will continue to work with our partners at VCIC, NCSIA, and OCC to work towards a plan to come into compliance which includes exploring IT solutions to expedite in-state fingerprint supported background clearances prior to employment.	12/31/2025